

the Court could adjust the *onus* amongst the parties according to the equitable rule, viz. in proportion to their actual enjoyment, as soon as it could be ascertained (*e*). And in *Greenwood v. Evans* (*f*), *Reeves v. Creswick* (*g*), and *Ainslie v. Harcourt* (*h*), where the fines were to be raised out of the *rents, issues, and profits*, or *by mortgage*, the Court in like manner adopted the principle of throwing the *onus* on the successive tenants of the estate, in proportion to their enjoyment (*i*). In the first two cases the *leaseholds were* [*368] *for lives*, and in the last the leaseholds were * partly for *lives* and partly for years, but no distinction was taken on that account. The present leaning of the Courts would appear, therefore, to be, to consider the language of the instrument, as directing only the temporary mode of raising the fines, without prejudice to the ultimate equitable adjustment according to the principles now acted upon in equity in ordinary cases. But if the trusts be to pay the renewal fines by and out of "the *annual* rents, issues, and profits," with a *power*, if the money wanted for renewal be not produced, to raise it by mortgage, the *onus* will fall upon the tenant for life (*a*).

3. **How to be levied when the leases are for lives.**—If the leaseholds be either for *lives* or for *years determinable on lives*, and the trust is to raise the fines for renewal out of the "*rents, issues, and profits*," the expenses of renewal must still be cast upon the *annual* rents, if it *clearly appear* that such were meant, though from the *uncertainty of the time*, the trustees cannot be sure they shall have accumulated an adequate fund.

4. **Whether rents and profits mean annual rents.**—But the expression "*rents, issues, and profits*," often stands by itself, without any sufficient indication *aliunde* that *annual* rents are intended, and then the question arises, and is attended with great difficulty, whether the fines shall be raised out of the annual rents or the *corpus*.

(*e*) *Jones v. Jones*, 5 Hare, 440.

(*h*) 28 Beav. 313.

(*f*) 4 Beav. 44.

[(*i*) See *Isaac v. Wall*, 6 Ch. D.

(*g*) 3 Y. & C. 715, as corrected from Reg. Lib.; see note (*a*); p. 369.

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(*a*) *Solly v. Wood*, 29 Beav. 482.